THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

# ADDITIONAL INSURED – OWNERS, LESSEES OR CONTRACTORS – AUTOMATIC STATUS (INCLUDING COMPLETED OPERATIONS)

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE FORM

A. The words "you" and "your" as used in this endorsement refer to the Named Insured shown in the Declarations and any other person or organization qualifying as a Named Insured under the policy to which this endorsement is attached. "You" and "your" do not refer to an additional insured.

**B. The following is added to Section II – Who Is An Insured:**

1. Any person or organization for whom you are performing operations when you and such person or organization have agreed in a written contract or written agreement that such person or organization be added as an additional insured on your policy. Such person or organization is an additional insured only with respect to:

   a. Liability for "bodily injury", "property damage" or "personal and advertising injury" caused, in whole or in part, by:

      (1) Your acts or omissions; or

      (2) The acts or omissions of those acting on your behalf,

      in the performance of your ongoing operations for the additional insured.

      A person or organization's status as an additional insured for ongoing operations ends when your operations for that additional insured are completed.

   b. Liability for "bodily injury" or "property damage" caused in whole or in part, by "your work" at the location designated and described in the written contract or written agreement with that additional insured and included within the "products-completed operations hazard".

2. With respect to the insurance afforded to the additional insured described above, the following additional exclusions or limitations apply::

   a. This insurance does not apply to "bodily injury" or "property damage" caused by your ongoing operations, or "your work" included in the "products-completed operations hazard", unless you are required to provide such coverage for the additional insured by a written contract or agreement. The contract or agreement must be in effect during this policy period and signed and executed by you prior to the loss for which coverage is sought. Coverage for the additional insured is provided only for the lesser of: (i) the period of time required by such contract or agreement; or (ii) the end of the policy period. In no event will coverage for the additional insured extend beyond the expiration date of the policy.

   b. This insurance does not apply to "bodily injury", "property damage" or "personal and advertising injury" arising out of the rendering of, or the failure to render any professional engineering, architectural or surveying services by you or others on your behalf, including:

      (1) The preparing, approving, failing to prepare approve, maps, shop drawings, opinions, reports, surveys, field orders, change orders, or drawings and specifications; or

      (2) Supervisor or inspection activities performed as part of any related architectural or engineering activities.

      However, professional services do not include services within construction means, methods, techniques, sequences and procedures employed by you in connection with your operations in your capacity as a construction contractor.


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c. This insurance does not apply to "bodily injury", "property damage" or "personal and advertising injury" arising out of the sole negligence or willful misconduct of, or defects in design provided by, the additional insured or its "employees".

d. This insurance does not apply to "bodily injury" or "property damage":

(1) Occurring after all work, including materials, parts or equipment furnished in connection with such work, on the project (other than service, maintenance, or repairs) to be performed by or on behalf of the additional insured(s) at the location of the covered operations has been completed; or

(2) Once the location designated and described in the written contract or written agreement has been put to its intended use by any person or organization other than another contractor or subcontractor engaged in performing operations for a principal as part of the same project,

except to the extent a written contract or written agreement requires coverage to be provided for "bodily injury" or "property damage" included within the "products-completed operations hazard".

e. With respect to any person or organization added as an additional insured by this endorsement, paragraph **9.f.** of Section **V** – Definitions – Commercial General Liability policy does not apply to "bodily injury" or "property damage" included within the "products-completed operations hazard" unless such contractual assumption of liability is specifically required by a written contract or written agreement.

f. The insurance as provided in this endorsement does not apply to "bodily injury", "property damage" or "personal and advertising injury" caused by "your work" for which a consolidated (wrap-up) insurance program has been provided by the prime contractor, project manager or owner of a construction project in which you are involved.

3. The Limits of Insurance applicable to an additional insured are those specified in the written contract or written agreement or in the Declarations of this policy, whichever is less. These limits are inclusive of, and are not in addition to, the Limits of Insurance shown on the Declarations.

4. With respect to the coverage provided under this endorsement to an additional insured, the following is added to paragraph **4.a.**, Other Insurance, of Section IV – Commercial General Liability Conditions:

However, if a written contract or written agreement in effect during the policy period and signed and executed by you prior to the loss for which coverage is sought specifically requires this insurance to be either primary or primary and non-contributory, this insurance will comply with that requirement.

5. As a condition of coverage, each additional insured must:

a. Give us prompt written notice of any "occurrence" or offense which may result in a claim and prompt written notice of "suit".

b. Immediately forward all legal papers to us, cooperate in the investigation or settlement of the claim or defense against the "suit," and otherwise comply with policy conditions.

c. Tender the defense and indemnity of any claim or "suit" to any other insurer which also insures against a loss we cover under this endorsement. This includes, but is not limited to, any insurer which has issued a policy of insurance in which the additional insured qualifies as an insured under any applicable policy definition. For purposes of this requirement, the term "insures against" refers to any self-insurance and to any insurer which issued a policy of insurance that may provide coverage for the loss, regardless of whether the additional insured has actually requested, demanded, or targeted tender that the insurer provide the additional insured with a defense and/or indemnity under that policy of insurance.

d. Agree to make available any other insurance that the additional insured has for a loss we cover under this endorsement.


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# FORMS AND ENDORSEMENTS

## APPLICABLE TO THE COMMERCIAL GENERAL LIABILITY COVERAGE PART

| NEW | FORM OR ENDORSEMENT AND EDITION DATE | ENDORSEMENT TITLE (Only the endorsement titles are shown below, please review the form for a complete description of coverage.) |
|---|---|---|
| | CG 21 67 12 04 | Fungi or Bacteria Exclusion |
| | CG 00 01 12 04 | Commercial General Liability Coverage Form |
| | SL 20 02 01 06 | Asbestos Exclusion |
| | SL 20 04 01 06 | Exclusion - Lead Liability |
| | CG 24 26 07 04 | Amendment of Insured Contract Definition |
| | CG 21 47 07 98 | Employment Related Practices Exclusion |
| | CG 01 86 12 04 | Utah Changes |
| | SL 21 86 01 06 | Exclusion - Exterior Insulation Finish Systems or Permanent Coating Systems |
| | CG 21 96 03 05 | Silica or Silica-Related Dust Exclusion |
| | CG 24 04 10 93 | Waiver of Transfer of Rights or Recovery Against Others |
| | SL 10 24 01 08 | Additional Insured - Owners, Lessees, Contr - Incl Completed Ops - Automatic |
| | CG 00 67 05 09 | Recording and Distribution of Material or Information in Violation of Law |
| | CG 25 03 03 97 | Designated Construction Project(s) General Agg Limit |
| | CG 22 94 10 01 | Exclusion - Damage to Work Performed by SubContractors |
| | CG 21 54 01 96 | Exclusion - Designated Operations - Wrap-Up |
| | IL 00 21 09 08 | Nuclear Energy Exclusion |
| | CG 21 70 01 08 | Cap on Losses From Certified Acts of Terrorism |
| | CG 21 76 01 08 | Exclusion of Punitive Damages Related to a Certified Act of Terrorism |
| | IL 09 85 01 08 | Disclosure Pursuant to Terrorism Risk Insurance Act |
| | CG 21 87 01 07 | Conditional Exclusion of Terrorism |
| | IL 09 99 01 07 | Disclosure of Premium and Estimated Premium for Certified Acts of Terrorism Coverage |
| | SI 10 20 06 10 | Notice of Cancellation Scheduled Party |
| * | CG 21 07 05 14 | Exclusion - Access or Disclosure of Confidential or Personal Information And Data-related Liab Lmtd Bodily Exception Not Incl |

*Indicates a new form has been added or a replacement form has been substituted for one of an earlier edition. Please retain all forms.



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